

# MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 1st, 2025 (the "Effective Date") by and between:

**CLIENT:** Globex International Holdings Inc., a Delaware corporation with principal place of business at 1234 Market Street, San Francisco, CA 94103, USA ("Client");

**SERVICE PROVIDER:** Acme Cloud Solutions Ltd., a company organized under the laws of the United Kingdom with registered office at 50 Liverpool Street, London EC2M 7PY ("Provider").

The initial term of this Agreement shall be 36 (thirty-six) months from the Effective Date, expiring on February 28th, 2028, with automatic renewal for successive 12-month periods unless either party provides written notice of non-renewal at least 90 days prior to expiration.

## 1. SCOPE OF SERVICES

Provider shall deliver cloud infrastructure consulting, migration services, and managed operations as detailed in Statements of Work executed under this Agreement.

## 2. FEES AND PAYMENT TERMS

Total estimated annual contract value is USD 1,800,000 (one million eight hundred thousand US dollars). Invoices shall be paid within 30 days of receipt. Late payments shall accrue interest at 1.5% per month.

## 3. SERVICE LEVEL AGREEMENT

Provider shall maintain 99.9% monthly uptime for production services. Failure to meet SLA shall result in service credits equal to 10% of monthly fees per 0.1% below target, capped at 25% of monthly fees.

## 4. DATA PROTECTION (GDPR)

The parties shall comply with applicable data protection laws, including the General Data Protection Regulation (EU 2016/679) and the California Consumer Privacy Act. A separate Data Processing Addendum is attached as Exhibit B.

## 5. CONFIDENTIALITY

Each party agrees to maintain the confidentiality of all proprietary information disclosed during the term and for 5 years thereafter. Disclosure to employees, advisors and subcontractors on a need-to-know basis is permitted under equivalent obligations.

## 6. LIMITATION OF LIABILITY

Except for breaches of confidentiality, intellectual property infringement, or indemnification obligations, each party's aggregate liability shall not exceed the fees paid in the 12 months preceding the claim.

## 7. FORCE MAJEURE

Neither party shall be liable for delays caused by acts of God, war, terrorism, pandemic, governmental action, or other events beyond reasonable control, provided notice is given within 10 business days.

## 8. INTELLECTUAL PROPERTY

All deliverables custom-developed for Client shall be owned by Client. Provider retains ownership of pre-existing tools, frameworks, and methodologies, licensed to Client for internal use.

## **9. ANTI-CORRUPTION COMPLIANCE**

The parties shall comply with the U.S. Foreign Corrupt Practices Act (FCPA), the UK Bribery Act 2010, and all applicable anti-bribery laws.

## **10. AUDIT RIGHTS**

Client may audit Provider's compliance with this Agreement once per calendar year, upon 15 business days' notice, during normal business hours.

## **11. NON-COMPETE**

During the term and for 12 months thereafter, Provider shall not solicit Client's key personnel without prior written consent.

## **12. TERMINATION**

Either party may terminate: (a) for material breach with 30 days' cure period; (b) for convenience with 90 days' written notice; (c) immediately upon insolvency or bankruptcy.

## **13. GOVERNING LAW AND JURISDICTION**

This Agreement shall be governed by the laws of the State of Delaware, USA. Any disputes shall be submitted to the exclusive jurisdiction of the federal courts located in Wilmington, Delaware.

Executed on March 1st, 2025.

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Globex International Holdings Inc.  
(Client)

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Acme Cloud Solutions Ltd.  
(Provider)